

Mrs. Meghna Saboo vs Mr. Shrikant Saboo on 16 February, 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 16TH DAY OF FEBRUARY 2023

BEFORE

THE HON'BLE MR.JUSTICE ASHOK S. KINAGI

WRIT PETITION NO.32015 OF 2019 (GM-FC)
C/ W

WRIT PETITION NO.36453 OF 2019 (GM-FC)

IN W.P. NO.32015 OF 2019
BETWEEN:

MR. SHRIKANT SABOO
S/O MOHANLAL SABOO,
AGED ABOUT 41 YEARS
RESIDING AT NO.A-19, NAKA MADAR
AJMER - 305001, RAJASTHAN

...PETITIONER

(BY SRI. ADITYA D. & SRI. SHIVA SRINIVASA, ADVOCATES)

AND:

MRS. MEGHNA SABOO
W/O SHRIKANT SABOO, AGED 40 YEARS
RESIDING AT NO.A-303,
BRIGADE PALM SPRINGS APARTMENT
J P NAGAR, 7TH PHASE, BENGALURU-560078
ALSO AT
1005/1006, VANDANA APARTMENTS
22/1, ALIPORE ROAD, NEW ALIPORE
KOLKATA - 700027, WEST BENGAL

... RESPONDENT

(BY SRI. M. VINOD KUMAR, ADVOCATE)

THIS PETITION IS FILED UNDER ARTICLE 226 OF THE
CONSTITUTION OF INDIA PRAYING TO QUASH A PORTION OF
THE INTERIM ORDER OF MAINTENANCE DATED 18.06.2019

W.P.Nos.32015/2019
c/w 36453/2019

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PASSED IN M.C.NO.2533/2016 BY THE LEARNED 5TH
ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, AT

BANGALORE [ANNEXURE-A] IN SO FAR AS IT RELATES TO THE
DIRECTION ISSUED TO THE PETITIONER TO PAY THE
EDUCATIONAL EXPENSES DIRECTLY TO SCHOOL AUTHORITY
FROM THE ACADEMIC YEAR 2019-2020.

IN W.P. NO.36453 OF 2019
BETWEEN:

MRS. MEGHNA SABOO
W/O SHRIKANT SABOO,
AGED ABOUT 40 YEARS
RESIDING AT NO.A-303,
BRIGADE PALM SPRINGS APARTMENT
J P NAGAR, 7TH PHASE, BENGALURU-560078
ALSO AT
1005/1006, VANDANA APARTMENTS
22/1, ALIPORE ROAD, NEW ALIPORE
KOLKATA - 700027, WEST BENGAL

...PETITIONER

(BY SRI. M. VINOD KUMAR & SRI. SHIVA SRINIVASA
ADVOCATES)

AND:

MR. SHRIKANT SABOO
S/O MOHANLAL SABOO,
AGED ABOUT 41 YEARS
RESIDING AT NO.A-19, NAKA MADAR
AJMER - 305001, RAJASTHAN

... RESPONDENT

(BY SRI. ADITYA D., ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLE 226 OF
THE CONSTITUTION OF INDIA PRAYING TO MODIFY THE
IMPUGNED ORDER OF MAINTENANCE DATED 18.06.2019
PASSED IN M.C.NO.2533/2016 BY THE LEARNED 5TH
ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, AT
BANGALORE AND ENHANCE THE INTERIM MAINTENANCE.

W.P.Nos.32015/2019
c/w 36453/2019

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THESE WRIT PETITIONS HAVING BEEN HEARD AND
RESERVED FOR ORDERS ON 20.01.2023, COMING ON FOR
PRONOUNCEMENT THIS DAY, THE COURT MADE THE
FOLLOWING:

ORDER

These writ petitions are filed challenging the order dated 18.06.2019, passed in M.C.No.2533/2016 on the file of V Additional Principal Judge, Family Court, Bengaluru. W.P.No.32015/2019 is filed by the husband and W.P.No.36543/2019 is filed by the wife.

2. Brief facts leading rise to filing of this petition are as under:

The petitioner-husband in W.P.No.32015/2019 filed a petition under Section 13(1)(ia)&(ib) of the Hindu Marriage Act. The respondent-wife filed objections to the main petition denying the averments made in the petition. The respondent filed an application under Section 24 of the Hindu Marriage Act c/w 36453/2019 seeking for monthly maintenance of Rs.1,50,000/- in I.A.No.4. In support of the said application, the respondent filed an affidavit contending that the petitioner is the husband and respondent is the wife and their marriage was performed on 20.06.2002 at Jaimahal Palace, Jaipur. Out of their wedlock, 2 children are born. 1st son is Yashvardhan and 2nd is the daughter by name Nivedita. Both the children are under the care and custody of the respondent-wife. The respondent is residing at Bengaluru along with her two children. The petitioner has not paid a single pie towards the maintenance of the children. It is stated that the children are studying in school and respondent is paying the school fees by raising loan from her relatives. Hence, the petitioner is liable to pay the interim maintenance as sought by the respondent.

c/w 36453/2019 The said application was opposed by the petitioner by filing objections denying the averments made in the affidavit.

The Family Court after hearing the arguments on both sides, allowed the application and awarded monthly maintenance of Rs.10,000/- to the respondent and Rs.7,500/- each to the children from the date of petition till further orders and directed the petitioner to pay educational expenses directly to the school authority from the academic year 2019-20 and further directed the petitioner to deposit an amount of Rs.4,00,000/- which appears to have claimed by the wife in view of the orders passed by this Court and said amount is to be deducted from the arrears which is going to be paid by the petitioner and directed both the parties to file their respective affidavits duly sworn before the Magistrate mentioning the true monthly income from all sources.

c/w 36453/2019 The petitioner aggrieved by the order passed by the Family Court awarding interim maintenance, filed writ petition in W.P.No.32015/2019 and the respondent being dissatisfied with the interim maintenance awarded by the Family Court filed W.P.No.36543/2019 for enhancement.

3. Heard learned counsel for petitioner and learned counsel for respondent.

4. Learned counsel for the petitioner-husband submits that the respondent admitted the children to Indus International School and the school fees for both children amounting to Rs.14,30,000/- per annum. The trial Court failed to take into consideration that the petitioner will not be in a position to pay the school fees as it exceeds his annual income. He further submits that the trial Court has committed an error in coming to a conclusion that c/w 36453/2019 the petitioner has admitted in the objections that he is ready to maintain his children. The petitioner is not in a sound financial position to maintain the entire educational expenses of his two minor children. Hence, on these grounds, he prays to allow the writ petition filed by the petitioner and dismiss the writ petition filed by the respondent.

5. Per contra, learned counsel for the respondent-wife submits that the annual income of the petitioner is more than Rs.25,00,000/- and he is leading a luxurious life, such as, every year he used to go to foreign countries on trips and further he has produced a fake salary certificate and the respondent has admitted the children to Indus International School in Bengaluru. It is the liability of the petitioner to continue to pay the school fees. It is further submitted that the respondent by raising loan from her relatives, is paying the school fees. The petitioner c/w 36453/2019 has not paid a single pie to the respondent towards the maintenance of two children. He submits that the Family Court has not taken into consideration the annual income of the petitioner and has awarded lesser maintenance amount. Hence on these grounds he prays to dismiss the writ petition filed by the petitioner and allow the writ petition filed by the respondent.

6. Perused the records and considered the submissions made by learned counsel for the parties.

7. Admittedly the petitioner and respondent are husband and wife and their marriage was solemnized on 20.06.2002. Out of their wedlock they have two children namely Master Yashvardhan and Nivedita. Both are studying in Indus International School. The petitioner is working at Sharjah and earning AED 6000 p.m. In order to substantiate the monthly income of c/w 36453/2019 the petitioner, the petitioner has produced his salary certificate issued on 28.09.2016 vide Annexure-B. The main grievance between the parties is with regard to educational expenses of children. As per the invoice Annexure-J dated 04.06.2019, the educational expenses for one child is Rs.7,10,000/-. On 11.11.2019, learned counsel for the respondent submitted that respondent-wife is ready to pay Rs.7,10,000/- towards the total fee of one child and she is satisfied if the petitioner - husband pays school expenses of another child and respondent was directed to file an affidavit to that effect. Pursuant to the order dated 11.11.2019, respondent filed an affidavit on 20.01.2023, undertaking to bear the educational expenses of one child.

8. Admittedly, in the instant case, the petitioner has not paid the educational expenses of his children. Claiming maintenance under Section 125 Cr.P.C. and c/w 36453/2019 interim maintenance under Section 24 of the Hindu Marriage Act is a tool for social justice enacted to ensure that woman and children are protected from a life of potential vagrancy and destitution. In the instant case, the respondent - wife is working and earning sufficiently to maintain herself. This does not automatically mean that petitioner is absolved of his responsibility to provide maintenance for his children. A father has an equal responsibility to provide for his children and there cannot be a situation wherein it is only the respondent-wife who has to bear the burden of the expenses for

raising and educating the children. The Court cannot shut its eyes to the reality that simply respondent is bearing the expenses of education of her children, it does not place him in a position where he can earn to sustain and maintain himself. This Court cannot countenance such a situation wherein the entire burden is on the c/w 36453/2019 respondent (mother) to bear the expenses of education of the children without any contribution from the petitioner (father). Education is an important aspect in children's life. Amount need to be spent for it. Every father is bound to provide good education to his children. No father is expected to produce a criminal or a disorderly person. Thus, the petitioner has to bear the educational expenses of his children. As observed above, the respondent-wife has agreed to bear the educational expenses of one child. The petitioner is under obligation to maintain and to meet the educational expenses of the other child. The petitioner must carry the financial burden of making certain that his children are capable of attaining a position in the society wherein they can sufficiently maintain themselves. The respondent cannot be burdened with the entire educational expenses of the c/w 36453/2019 children just because the petitioner has no financial capacity to meet the educational expenses.

9. The Hon'ble Apex Court in the case of ANJU GARG & ANR. V. DEEPAK KUMAR GARG, reported in 2022 SCC ONLINE SC 1314, has held as follows:

"10. This Court had made the above observations as the Court felt that the Family Court in the said case had conducted the proceedings without being alive to the objects and reasons, and the spirit of the provisions under Section 125 of the Code. Such an impression has also been gathered by this Court in the case on hand. The Family Court had disregarded the basic canon of law that it is the sacrosanct duty of the husband to provide financial support to the wife and to the minor children. The husband is required to earn money even by physical labour, if he is an able-bodied, and could not avoid his obligation, except on the legally permissible grounds mentioned in the statute. In CHATURBHUI V. SITA BAI, reported in (2008) 2 SCC 316, it has been held that the object c/w 36453/2019 of maintenance proceedings is not to punish a person for his past neglect, but to prevent vagrancy and destitution of a deserted wife, by providing her food, clothing, and shelter by a speedy remedy. As settled by this Court, Section 125 Cr.P.C. is a measure of social justice and is specially enacted to protect women and children. It also falls within the Constitutional sweep of Article 15(3), reinforced by Article 39 of the Constitution of India."

10. The Family Court was justified in passing the impugned order. In view of the above discussion and considering the law laid down by the Hon'ble Apex Court in the aforesaid case, I proceed to pass the following:

ORDER The writ petition filed by the petitioner-husband is partly allowed and the writ petition filed by the respondent-wife is dismissed.

c/w 36453/2019 The petitioner-husband is directed to pay the educational expenses of one child from the academic year 2019-20 . Since the respondent-wife has already paid the school fees for the academic year 2019-20 till the present academic year, the petitioner-husband is directed to refund the said amount to the respondent-wife, within a period of three months from today, failing which, the respondent-wife is

entitled to recover the same in accordance with law.

Further the petitioner-husband is directed to pay the educational expenses of one child directly to the school for the upcoming academic years.

SD/-

JUDGE RD